

Naming Your Business, Claiming Your Domain & **Filing It Right**

A step-by-step walk from idea to official — no lawyer required.

Free • 5 short chapters

- 1 Picking a Name That Actually Works
- 2 Checking Real Availability
- 3 Fictitious Name vs. LLC
- 4 Filing Your Paperwork
- 5 Registering Your Domain



START HERE

Introduction

Most of the delay between “I have an idea” and “I have a real business” isn’t the idea itself — it’s getting stuck on naming, checking, and filing, in no particular order, with no idea which step actually needs to come first. This guide puts them in order: pick a name, check it’s actually available, understand what you’re filing and why, file it, then lock down the domain. Do it in this order and nothing gets stuck waiting on something you skipped.



CHAPTER 01

Picking a Name That Actually Works

A name that works in practice is easy to say out loud, easy to spell after hearing it once, and doesn’t box you into one narrow service if there’s any chance you’ll expand what you offer. Say it in a sentence like a customer would — “I found them through [Name]” — and notice if it feels natural or clunky. Run a quick search for the name plus your city to make sure it doesn’t already carry a reputation you don’t want to inherit. If you’re starting from nothing, the Business Idea Generator on this site will throw out six real options in under a minute — free, no signup.

CHAPTER 02

Checking Real Availability

Most people stop at the easy checks — a Google search, an open Instagram handle — and assume that means the name is free to use. It doesn’t. Three checks actually matter: first, your state’s business entity and fictitious name registry (in Florida, that’s Sunbiz.org — every state has an equivalent) to confirm no one else has already registered that exact name. Second, a basic trademark search at the USPTO’s free search tool (uspto.gov/trademarks/search), so you’re not building a brand around a name someone else already owns nationally. Third, the domain itself, which Chapter Five covers. A free social handle can vanish the day a bigger company wants it — a registered name and an owned domain can’t.

Fictitious Name vs. LLC

These solve two different problems, and most new business owners only need the first one to start. A fictitious name (also called a DBA, “doing business as”) simply registers that you’re operating under a name that isn’t your own legal name. It’s cheap, fast, and lets you open a business bank account and get paid under that name — but it creates no legal separation between you and the business. An LLC is a separate legal entity: it protects your personal assets if the business gets sued or can’t pay a debt, and it costs more in setup and ongoing filing fees. A reasonable rule of thumb: file a fictitious name to get moving, and form an LLC once you have real liability exposure — employees, contracts, physical work in someone else’s home, or meaningful revenue you want to protect.

Filing Your Paperwork

Once you’ve confirmed the name is free, filing usually goes in this order: register the fictitious name with your state’s Division of Corporations (or equivalent) and pay the state fee — some states also require you to publish a notice in a local newspaper, so check your state’s specific rule before you assume you’re done. Next, get an EIN (Employer Identification Number) directly from irs.gov — it’s free and takes about ten minutes; ignore any third-party site that charges for this, since they’re just charging you to fill out a form the IRS gives away for free. Finally, take your filing confirmation and EIN to a bank to open a business account, so business money never mixes with personal money from day one. If all of this reads like more hassle than you want to deal with yourself, Scrappy Stacks will file your fictitious name for you for a flat fee, state fees included — see the filing service page on this site.

Registering Your Domain

Check availability the moment you’ve settled on a name — good domains disappear fast. Register through Cloudflare rather than the big-name registrars: Cloudflare sells domains at cost, with no markup on renewal and none of the “premium domain” upsell pressure you’ll hit elsewhere. Get the .com if it’s reasonably priced and available — it’s still what people type by habit. Only buy obvious misspellings or extra extensions (.co, .net) if they’re cheap and you have a specific reason to; for a new small business, one solid domain beats five you’re paying to renew every year.

QUICK CHECKLIST

Quick Checklist

- ☐ Name sounds natural when said out loud, and doesn't box you into one service
- ☐ Searched the name + your city for any existing reputation
- ☐ Checked your state's business entity / fictitious name registry
- ☐ Ran a basic search at the USPTO trademark search tool
- ☐ Decided: fictitious name (DBA) to start, or LLC if liability is a real concern
- ☐ Filed the fictitious name with your state, and published notice if your state requires it
- ☐ Got a free EIN directly from irs.gov
- ☐ Opened a business bank account under the filed name
- ☐ Registered the domain through Cloudflare

WHERE TO GO FROM HERE

Rather skip the DIY? We'll build it for you.

Once the name is filed and the domain is yours, the next place people get stuck is turning that domain into an actual website. That's exactly what Build It For Me is built to handle — a real site, hosting, and the ongoing maintenance, so the domain you just registered doesn't sit there unused for six months.

scrappystacks.com/build-it-for-me

